SAN SEBASTIAN RESERVE

A PORTION OF SECTION 28, TOWNSHIP 20 SOUTH, RANGE 28 EAST,
CITY OF APOPKA, ORANGE COUNTY, FLORIDA

LEGAL DESCRIPTION

A parcel of land comprising a portion of Section 28, Township 20 South, Range 28 East, City of Apopka, Orange County, Florida.
Being more particularly described as follows:

COMMENCE at the Southeast corner of aforesaid Section 28; thence run North 89° 55' 56" West along the South line of the Southeast 1/4 of said Section 28 for a distance of 600.00 feet; thence departing said South line run North 00° 23' 24" East for a distance of 30.00 feet to a point on the North right-of-way line of East Lester Road and the POINT OF BEGINNING; thence run North 89° 55' 56" West along said North right-of-way line for a distance of 430.44 feet; thence departing said North right-of-way line run North 00° 22' 34" East for a distance of 326.71 feet; thence run North 89° 55' 56" West for a distance of 200.00 feet to a point on the East line of a parcel of land described in Official Records Book 3141, Page 1427 of the Public Records of Orange County, Florida; thence run the following courses along said East line: North 00° 22' 34" East for a distance of 244.90 feet; thence run South 89° 55' 56" East for a distance of 38.50 feet; thence run North 00° 22' 34" East for a distance of 208.00 feet to the Northeast corner of aforesaid parcel of land described in Official Records Book 3141, Page 1427; thence run North 89° 55' 56" West along the North line of said parcel for a distance of 188.12 feet; thence departing aforesaid North line run North 00° 14' 49" East for a distance of 174.83 feet; thence run North 89° 50' 38" West for a distance of 575.31 feet to a point on the West line of the East 1/2 of the Southwest 1/4 of the Southeast 1/4 of aforesaid Section 28; thence run North 00° 07' 01" East along said West line for a distance of 345.69 feet to the Northwest corner of the East 1/2 of the Southwest 1/4 of the Southeast 1/4 of said Section 28; thence run South 89° 50' 38" East along the North line of the South 1/2 of the Southeast 1/4 of said Section 28, also being the South line of ALEXANDRIA PLACE according to the plat thereof as recorded in Plat Book 55, Pages 93 through 96 of aforesaid Public Records of Orange County, Florida for a distance of 1299.11 a point lying 5.99 feet west of the Northeast corner of the West 1/2 of the Southeast 1/4 of said Section 28; thence departing said North line and said South line run South 00° 38' 24" West for a distance of 140.58 feet; thence run South 00°20'22" West for a distance of 383.42 feet to a point lying 7.09 feet West of the East line of the West 1/2 of the Southeast 1/4 of said Section 28; thence run South 89° 50' 22" East for a distance of 58.80 feet; thence run South 00° 23' 24" West a distance of 774.93 feet to the POINT OF BEGINNING;

Contains 22.78 acres more or less.

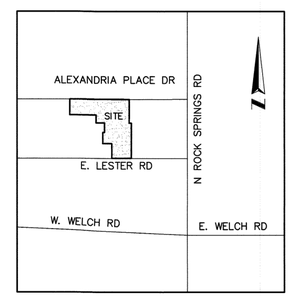
Together with:

A portion of Section 28, Township 20 South, Range 28 East, City of Apopka, Orange County, Florida, being more particularly described as follows: COMMENCE at the Southeast corner of said Section 28; thence North 00°23'24" East along the East line of the Southeast 1/4 of said Section 28, a distance of 750.01 feet; thence departing from said East line run North 89°55'56" West along a line 750 feet North from and parallel with, as measured at right angles to the South line of the Southeast 1/4 of said Section 28, a distance of 50.00 feet to the West right-of-way line of North Rock Springs Road and the POINT OF BEGINNING; thence South 00°23'24" West along said West right-of-way line, a distance of 31.06 feet; thence North 44°43'29" West, a distance of 35.43 feet to a point on a line lying 60 feet South from and parallel with, as measured at right angles to a Northerly boundary of lands described in that certain Corporate Warranty Deed as recorded in Official Records Book 6302, Page 1942, of the Public Records of Orange County, Florida; thence North 89°50'22" West along said parallel line, a distance of 524.90 feet; thence North 00°23'24" East along a line 600 feet West from and parallel with, as measured at right angles to the East line of the Southeast 1/4 of said Section 28, a distance of 5.07 feet to the Northwest corner of the South 750 feet of the East 600 feet of the Southeast 1/4 of said Section 28; thence continue North 00°23'24" East, a distance of 54.93 feet to a point on the Northerly boundary of said Corporate Warranty Deed; thence South 89°50'22" East along said Northerly boundary, a distance of 550.00 feet to the West right-of-way line of North Rock Springs Road; thence South 00°23'24" West along said West right-of-way line, a distance of 54.04 feet to the POINT OF BEGINNING.

Contains 0.77 acres more or less.

SURVEYOR'S NOTES:

1. Bearings shown hereon are assumed and based on the South line of the Southeast 1/4 of Section 28-20-28 being an assumed bearing of North 89°55'56" West for angular designation only.
2. All lot lines intersecting curves are radial, unless otherwise noted non-radial (N.R.).
3. All platted utility easements shall also be easements for the construction, installation, maintenance, and operation of cable television and data services; provided, however, no such construction, installation, maintenance, and operation of cable television services shall interfere with the facilities and services of an electric, telephone, gas, or other public utility. In the event a cable television company damages the facilities of a public utility, it shall be solely responsible for the damages. This section shall not apply to those private easements granted to or obtained by a particular electric, telephone, gas, or other public utility. Such construction, installation, maintenance, and operation shall comply with the National Electrical Safety Code as adopted by the Florida Public Service Commission.
4. Tracts A and N, (Landscape, Open Space, Dry Retention Area, Irrigation) and Tract H, (Wet Retention Pond, Irrigation), common areas, are dedicated to and maintained by the San Sebastian Reserve Homeowners Association, Inc., (The "Association"), with an easement dedicated to the City of Apopka for emergency operation and maintenance of the stormwater conveyance system. The City of Apopka is not responsible for the maintenance of the stormwater conveyance system.
5. Tracts B, C, D, and M (Open Space/Landscape/Irrigation), Tract O, (Open Space/Drainage/Utility) and common areas, are dedicated to and maintained by the Association.
6. Tract G, (Dog Park), common area, is dedicated to and maintained by the Association.
7. Tracts E and F, (Recreation Tracts/Irrigation), common areas, are dedicated to and maintained by the Association. A utility easement over Tract E is hereby dedicated to the perpetual use of the public.
8. Tract K (Lift Station Tract) shall be deeded to and maintained by the City of Apopka.
9. Tract I, (Public right-of-way) shall be deeded to the City of Apopka.
10. Tract J, (Private right-of-way/Utility), common area, shall be owned and maintained by the Association.
11. This plat contains 112 Lots.
12. All Lots are subject to a 10.00 foot utility easement adjacent to private rights-of-way, unless otherwise noted.
13. Sebastian Springs Lane Right of Way (SSLRW) shall be dedicated to the City of Apopka with the recording of the Plat. The Association shall be responsible to maintain all landscaping, trees, and irrigation within the SSLRW in perpetuity.
14. The Landscape/Wall/Irrigation easement and the Irrigation easement shown hereon are dedicated to and maintained by the Association.
15. A separate Mortgagee Joinder and Consent to the plat and recorded in doc # 20190501000 of the public records of Orange County, Florida, has been executed by the party that, at the time of recording, is the Mortgagee of the lands shown hereon.



VICINITY MAP (not to scale)

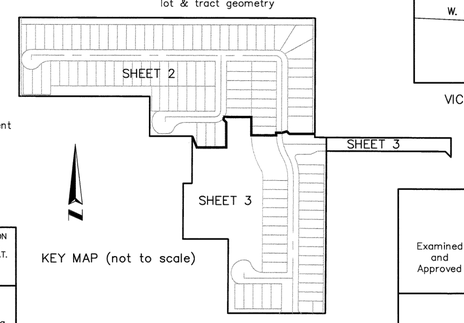
LEGEND:

L.B.	denotes licensed business	◉	denotes set nail & disk LB 6723 permanent control point (PCP)
U.E.	denotes utility easement	℄	denotes centerline
R/W	denotes right-of-way	LLC	denotes limited liability company
⌐	denotes change in direction along right-of-way lines	PG(S).	denotes page(s)
C.C.R. #	denotes Certified Corner Record Number	P.C.	denotes point of curvature
N.R.	denotes non-radial (see note 2)	P.T.	denotes point of tangency
■	denotes set 4" x 4" concrete monument LB 6723 permanent reference monument (PRM)	P.I.	denotes point of intersection
		P.B.	denotes Plat Book
		R.P.	denotes radius point
D.E.	denotes drainage easement	P.R.C.	denotes point of reverse curvature
D.U.E.	denotes drainage and utility easement	LSWIE	denotes landscape/wall/irrigation easement
D.B.	denotes Deed Book	IE	denotes irrigation easement
P.C.C.	denotes point of compound curvature		
N.T.	denotes non tangent		
O.R.B.	denotes official records book		

SHEET INDEX

SHEET 1 of 3 – legal description, Surveyor's notes, legend & dedication

SHEET 2 & 3 of 3 – boundary information, lot & tract geometry



KEY MAP (not to scale)

ALLEN & COMPANY
Professional Surveyors & Mappers
16 EAST PLANT STREET
WINTER GARDEN, FLORIDA 34787
(407) 654-5355

NOTICE: THIS PLAT, AS RECORDED IN ITS GRAPHIC FORM, IS THE OFFICIAL DEPICTION OF THE SUBDIVIDED LANDS DESCRIBED HEREIN AND WILL IN NO CIRCUMSTANCES BE SUPPLANTED IN AUTHORITY BY ANY OTHER GRAPHIC OR DIGITAL FORM OF THE PLAT. THERE MAY BE ADDITIONAL RESTRICTIONS THAT ARE NOT RECORDED ON THIS PLAT THAT MAY BE FOUND IN THE PUBLIC RECORDS OF THIS COUNTY.

QUALIFICATION STATEMENT OF SURVEYOR AND MAPPER

KNOW ALL MEN BY THESE PRESENTS, that I the undersigned, being a licensed surveyor and mapper, do hereby certify that on April 13, 2016 I completed the survey of the lands as shown in the foregoing plat or plan: that said plat is a true and correct representation of the lands surveyed and platted and was prepared under my direction and supervision; that permanent reference monuments have been placed as shown thereon; and this plat complies with all the survey requirements of Chapter 177, Florida Statutes; and that said land is located in the City of Apopka, Orange County, Florida.

By: _____ Date: 7/11/19
James L. Rickman P.S.M. # 5633 Allen & Company, Licensed Business # 6723
16 East Plant Street, Winter Garden, Florida 34787

CERTIFICATE OF REVIEW BY REVIEWING SURVEYOR

Pursuant to Section 177.081, Florida Statutes, I have reviewed this plat for conformity to Chapter 177 Part 1 of the Florida Statutes and that said plat complies with the technical requirements of that chapter; provided however, that my review does not include field verification of any of the coordinates, points or measurements shown on this plat.

Signed: Ralph A. Nieto July 16 2019
Printed Name: Ralph A. Nieto, PSM: LS5047
Registration Number 6025
Nieto Whittaker Surveying, LLC.

CERTIFICATE OF APPROVAL BY CITY ENGINEER

Examined and Approved _____ August 9, 2019
Richard Earp Date

CERTIFICATE OF APPROVAL BY APOPKA PLANNING COMMISSION

Examined and Approved _____ 7/17/19
Chairman Date

CERTIFICATE OF COUNTY COMPTROLLER

I HEREBY CERTIFY, that the foregoing plat was recorded in the Orange County Official Records on August 13, 2019 as Document No. 20190500998

County Comptroller in and for Orange County, Florida:
By: _____

COUNTY COMPTROLLER SEAL ORANGE COUNTY FLORIDA

SAN SEBASTIAN RESERVE

DEDICATION

THIS is to certify that the undersigned, K. Hovnanian San Sebastian, LLC, a Florida limited liability company hereafter referred to as "Owner" is the lawful owner of the lands described in the caption hereon, and that it has caused the same to be surveyed, and this plat, made in accordance with said survey, is hereby adopted as the true and correct plat of said lands. No part of said lands, except as noted on the face of this plat, is dedicated to the City of Apopka or to the public. None of the property designated "Common Area" on this plat is required for public use: and such "Common Area" is not and will not be a part of the City system of public roads. Said "Common Area" is instead part of the "Common Area" created by this plat and will be subject to the Community Declaration for San Sebastian Reserve as recorded in Official Records ~~Book ____, Page ____~~ Doc # 20190500999. (herein after referred to as the "Declaration"). Said "Common Area" shall remain private and the sole and exclusive property of Owner its successors and assigns. Owner does hereby grant to the present and future owners of lots (1 through 112) and their guests, invitees, domestic help, and to delivery, pick-up and fire protection services, police and other authorities of law, United States mail carriers, representatives of utilities, holders of mortgage liens on such lands, and such other persons as owner, its successor and assigns, may from time to time designate the non-exclusive and perpetual right of ingress and egress over and across the roads and sidewalks, as they may from time to time be constructed on Tract J of the "Common Area". The Owner, in recording this plat has created the Common Area" shown hereon, which common area is a portion of the "Common Area" described in the Declaration. Said "Common Area" is not dedicated to the use and enjoyment of the general public, but its use is reserved for the common use and enjoyment of the property owners of San Sebastian Reserve. The nature and extent of, and the reservations and restrictions on such common use and enjoyment are more fully set forth in the Declaration. Tract I (Public Right-Of-Way) is dedicated to the City of Apopka

NOTWITHSTANDING the foregoing: An emergency access easement to the private storm drainage system over Tract J and over all drainage easements shown on this plat is hereby dedicated to the City of Apopka for emergency maintenance purposes in the event inadequate maintenance of the storm drainage system creates a hazard to the public health, safety, and general welfare. The emergency access easement granted above does not impose any obligation, burden, responsibility or liability upon the City of Apopka to enter upon the subject property and take any action to repair or maintain the private drainage system. A non-exclusive easement through, over, under and across the common area and all noted utility easements is hereby dedicated for use by all public utilities for the purpose of constructing, maintaining and replacing their respective facilities servicing the lands encompassed by this plat.

IN WITNESS WHEREOF, the undersigned, K. Hovnanian San Sebastian, LLC a Florida limited liability company, has caused these presents to be executed and acknowledged by its undersigned Officer thereunto duly authorized on this 11 day of July 2019.

K. Hovnanian San Sebastian, LLC A Florida limited liability company

By: _____ Title: Division President
Printed Name: Kyle Upper

Signed and sealed in the presence of:
_____
Signature of witness:
Guy Trussell
Printed Name of witness:
_____
Signature of witness:
SUSAN MOKS
Printed Name of witness:

ACKNOWLEDGMENT

STATE OF FLORIDA COUNTY OF Orange

THIS IS TO CERTIFY, that on this 11 day of July, 2019 before me an officer duly authorized to take acknowledgments in the State and County aforesaid, personally appeared Kyle Upper on behalf of K, Hovnanian San Sebastian, LLC, a Florida limited liability company, who executed the foregoing Dedication and severally acknowledged the execution thereof to be his free act and deed for the uses and purposes therein expressed. He is personally known to me or has produced _____ as identification and did/did not take an oath.

IN WITNESS WHEREOF, I have hereto set my hand and seal on the above date.

NOTARY PUBLIC: _____
Printed Name: Cynthia Leigh Linden
Commission No.: GG 310677
My Commission Expires: April 26, 2023

CYNTHIA LEIGH LINDEN
Notary Public - State of Florida
Commission # GG 310677
My Comm. Expires Apr 26, 2023
Bonded through National Notary Assn.

CERTIFICATE OF APPROVAL BY MUNICIPALITY

THIS IS TO CERTIFY, that on _____ the foregoing plat was approved by the Municipality.

Mayor: _____
Attest: _____
City Clerk

SEAL

SAN SEBASTIAN RESERVE

A PORTION OF SECTION 28, TOWNSHIP 20 SOUTH, RANGE 28 EAST,
CITY OF APOPKA, ORANGE COUNTY, FLORIDA

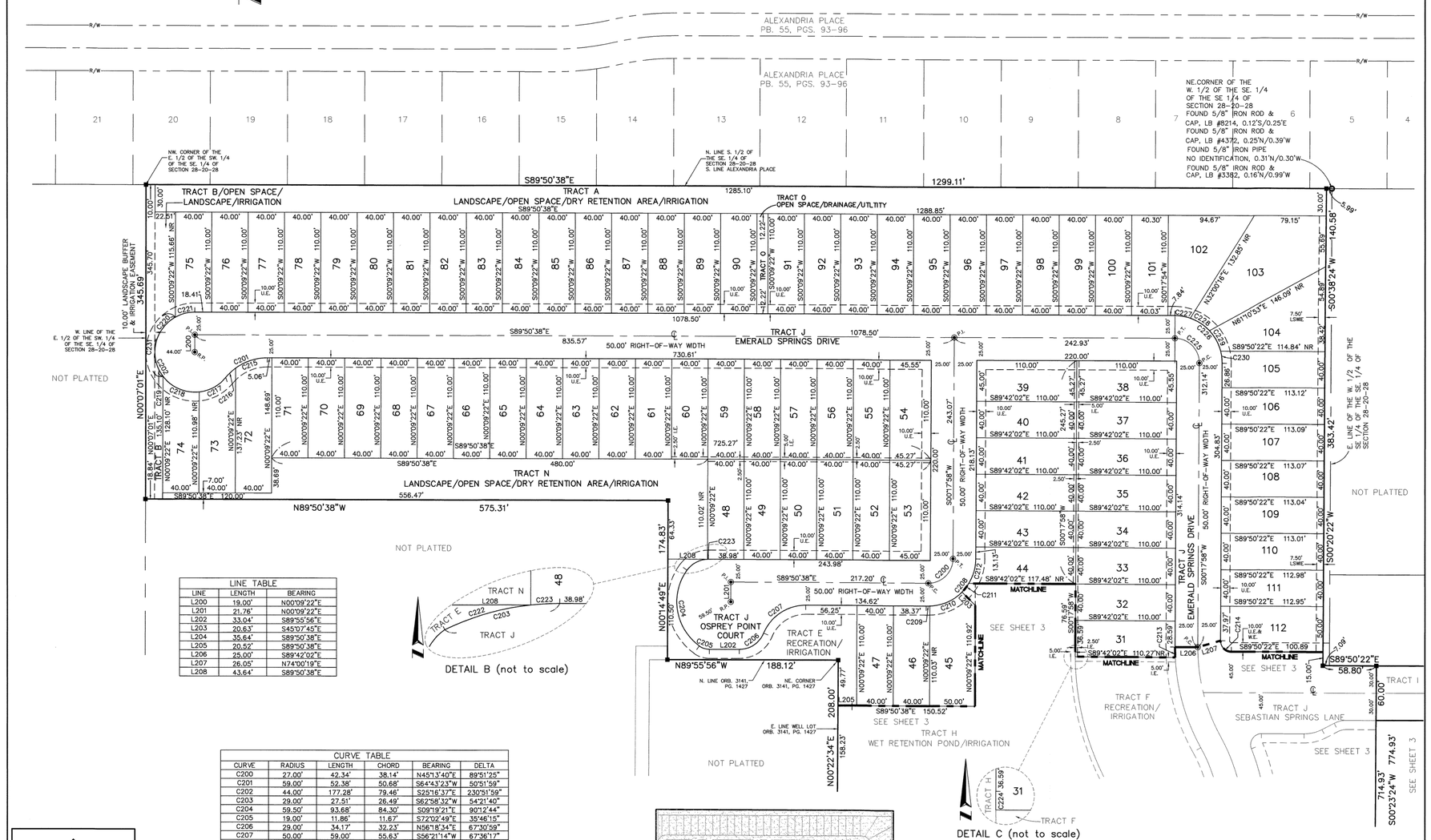
PLAT BOOK **100** PAGE **28**

SHEET 2 OF 3

GRAPHIC SCALE

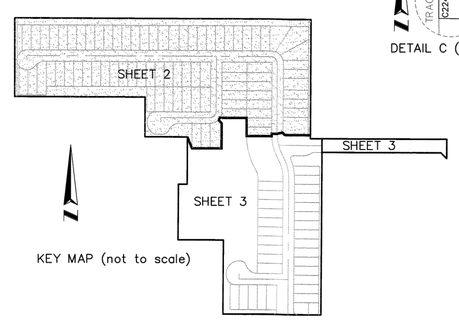
60 0 30 60

(IN FEET)
1 inch = 60 ft.



LINE TABLE		
LINE	LENGTH	BEARING
L200	19.00'	N00°09'22"E
L201	21.76'	N00°09'22"E
L202	33.04'	S89°55'56"E
L203	20.63'	S45°07'45"E
L204	35.64'	S89°50'38"E
L205	20.52'	S89°50'38"E
L206	25.00'	S89°42'02"E
L207	26.05'	N74°00'19"E
L208	43.64'	S89°50'38"E

CURVE TABLE					
CURVE	RADIUS	LENGTH	CHORD	BEARING	DELTA
C200	27.00'	42.34'	38.14'	N45°13'40"E	89°51'25"
C201	59.00'	52.38'	50.68'	S64°43'23"W	50°51'59"
C202	44.00'	177.28'	79.46'	S25°16'37"E	230°51'59"
C203	29.00'	27.51'	26.49'	S62°58'32"W	54°21'40"
C204	59.50'	93.68'	84.30'	S09°19'21"E	90°12'44"
C205	19.00'	11.86'	11.67'	S72°02'49"E	35°46'15"
C206	29.00'	34.17'	32.23'	N56°18'34"E	67°30'59"
C207	50.00'	59.00'	55.63'	S56°21'14"W	67°36'17"
C208	52.00'	81.55'	73.45'	N45°13'40"E	89°51'25"
C209	52.00'	1.63'	1.63'	N89°15'29"E	00°47'46"
C210	52.00'	39.50'	38.55'	N66°36'00"E	43°31'13"
C211	52.00'	12.19'	12.16'	N38°07'33"E	13°25'41"
C212	52.00'	28.24'	27.89'	N15°51'20"E	31°06'46"
C213	225.00'	11.41'	11.41'	S01°09'12"E	02°54'20"
C214	12.00'	18.88'	16.99'	S44°46'12"E	90°08'20"
C215	59.00'	37.39'	36.77'	S72°00'02"W	36°18'40"
C216	59.00'	14.99'	14.95'	S46°34'03"W	14°33'19"
C217	44.00'	34.09'	33.25'	N61°29'26"E	44°24'06"
C218	44.00'	45.51'	43.51'	S66°40'25"E	59°16'10"
C219	44.00'	28.53'	28.03'	S18°27'39"E	37°09'22"
C220	44.00'	46.57'	44.43'	S30°26'33"W	60°39'04"
C221	44.00'	22.57'	22.32'	S75°27'44"W	29°23'17"
C222	29.00'	26.50'	25.59'	S61°58'17"W	52°21'09"
C223	29.00'	1.02'	1.02'	S89°09'07"W	02°00'31"
C224	300.00'	3.41'	3.41'	S00°01'33"E	00°39'01"
C225	27.00	42.48'	38.23'	N44°46'20"W	90°08'35"
C226	52.00	81.81'	73.63'	N44°46'20"W	90°08'35"
C227	52.00	17.31'	17.23'	N80°18'46"W	19°04'09"
C228	52.00	25.25'	25.00'	N56°51'56"W	27°49'05"
C229	52.00	25.98'	25.71'	N28°38'41"W	28°37'24"
C230	52.00	13.28'	13.24'	N07°01'01"W	14°37'56"
C231	44.00'	75.10'	66.31'	S11°51'52"W	97°48'25"



KEY MAP (not to scale)

SHEET INDEX

SHEET 1 of 3 – legal description, Surveyor's notes, legend & dedication

SHEET 2 & 3 of 3 – boundary information, lot & tract geometry

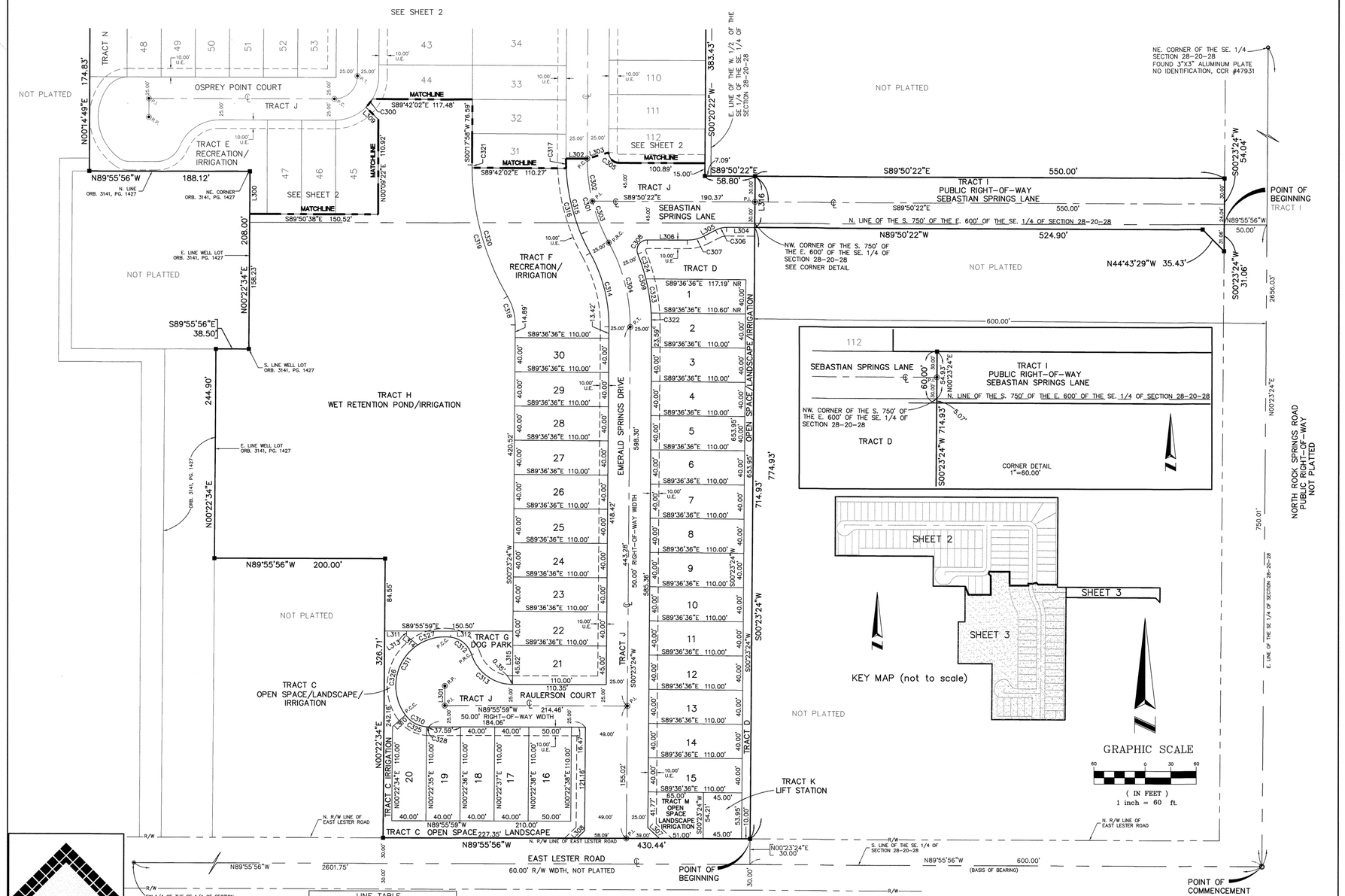
ALLEN & COMPANY
Professional Surveyors & Mappers
16 EAST PLANT STREET
WINTER GARDEN, FLORIDA 34787
(407) 654-5355

SAN SEBASTIAN RESERVE

A PORTION OF SECTION 28, TOWNSHIP 20 SOUTH, RANGE 28 EAST,
CITY OF APOPKA, ORANGE COUNTY, FLORIDA

SHEET 3 OF 3

PLAT BOOK **100** PAGE **29**



ALLEN & COMPANY
Professional Surveyors & Mappers

16 EAST PLANT STREET
WINTER GARDEN, FLORIDA 34787
(407) 654-5355

LINE TABLE		
LINE	LENGTH	BEARING
L300	49.77'	N00°22'34"E
L301	23.00'	S00°23'35"W
L302	25.00'	S89°42'02"E
L303	26.05'	N74°00'19"E
L304	32.99'	S89°50'22"E
L305	15.13'	N62°31'54"E
L306	46.98'	S89°50'22"E
L307	18.91'	S47°20'35"E
L308	12.73'	S45°57'05"W
L309	20.63'	S45°07'45"E
L310	20.42'	S47°45'54"W
L311	25.55'	S89°55'59"E
L312	124.95'	S89°55'59"E
L313	5.53'	S00°24'28"W
L314	17.08'	S50°40'55"E
L315	62.14'	S00°23'24"W
L316	60.00'	N00°23'24"E

CURVE TABLE					
CURVE	RADIUS	LENGTH	CHORD	BEARING	DELTA
C300	52.00'	12.19'	12.16'	N38°07'33"E	13°25'41"
C301	200.00'	102.54'	101.42'	S14°23'18"E	29°22'30"
C302	200.00'	50.30'	50.16'	S06°54'18"E	14°24'31"
C303	200.00'	52.24'	52.09'	S21°35'33"E	14°57'59"
C304	200.00'	102.85'	101.72'	N14°20'34"W	29°27'56"
C305	12.00'	18.88'	16.99'	S44°46'12"E	90°08'20"
C306	28.00'	13.50'	13.37'	S76°20'46"W	27°37'43"
C307	42.00'	20.25'	20.06'	N76°20'46"E	27°37'43"
C308	12.00'	23.47'	19.91'	S34°07'24"W	112°04'28"
C309	225.00'	87.59'	87.03'	N10°45'43"W	22°18'14"
C310	34.00'	31.71'	30.57'	S63°12'56"E	53°26'04"
C311	57.50'	133.34'	105.41'	S29°56'04"W	132°51'55"
C312	30.00'	34.42'	32.56'	N50°45'44"W	65°44'30"
C313	50.00'	62.87'	58.81'	S53°54'44"E	72°02'30"

CURVE TABLE					
CURVE	RADIUS	LENGTH	CHORD	BEARING	DELTA
C314	175.00'	90.00'	89.01'	N14°20'34"W	29°27'56"
C315	225.00'	115.36'	114.10'	S14°23'18"E	29°22'30"
C316	225.00'	103.95'	103.02'	S15°50'27"E	26°28'10"
C317	225.00'	11.41'	11.41'	S01°09'12"E	02°54'20"
C318	65.00'	34.94'	34.52'	N15°05'06"W	30°48'05"
C319	300.00'	161.19'	159.26'	S15°05'36"E	30°47'06"
C320	300.00'	158.77'	155.97'	S15°25'06"E	30°08'05"
C321	300.00'	3.41'	3.41'	S00°01'33"E	00°39'01"
C322	225.00	16.43'	16.42'	N01°42'06"W	04°10'59"
C323	225.00	40.59'	40.54'	N08°57'42"W	10°20'14"
C324	225.00	30.57'	30.54'	N18°01'19"W	07°47'01"
C325	34.00	29.30'	28.40'	S61°10'56"E	49°22'04"
C326	57.50	93.15'	83.29'	S09°54'41"W	92°49'10"
C327	57.50	40.19'	39.38'	S76°20'39"W	40°02'45"

SHEET INDEX

SHEET 1 of 3 – legal description, Surveyor's notes, legend & dedication

SHEET 2 & 3 of 3 – boundary information, lot & tract geometry